

With respect to defendants' argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking / Conclusion

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Defendants argue the amount should be equal to the amount of the claimed debt (\$248,328.77). Plaintiff responds that the defendants were required to show, through declarations, that the undertaking should be more than the statutory default, which is \$10,000. (Code Civ. Proc., § 489.220 (a).)

Code of Civil Procedure, § 489.220 (b) states, the Court "shall" order an increased amount, but only where it finds "the probable recovery for wrongful attachment exceeds the amount of the undertaking." Here, defendants do not dispute that there is a debt owed (or that will be owed) in the amount shown in the documents. It is thus not clear to the Court what the monetary consequence of wrongful attachment would be. Accordingly, the amount of the undertaking shall be \$10,000 per defendant for a total amount of \$20,000.

Subject to (1) the plaintiff posting an undertaking in the amount of \$20,000, (2) the striking of "personal property" in Attachment 9 to the Application with respect to Dhoot, as identified above, and (3) filing a signed declaration by Steinle by the time of hearing, the applications will be granted.

20. 9:00 AM CASE NUMBER: MSC22-00460
CASE NAME: NATURA MANAGEMENT,LLC VS. AGRA TECH, INC.
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AGRA TECH, INC.

TENTATIVE RULING:

This matter has been reassigned to Department 16 pursuant to Code of Civil Procedure section 170.6 and reset for April 15, 2026.

21. 9:00 AM CASE NUMBER: MSC22-00460
CASE NAME: NATURA MANAGEMENT,LLC VS. AGRA TECH, INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 2ND AMENDED COMPLAINT**
FILED BY: AGRA TECH, INC.

TENTATIVE RULING:

This matter has been reassigned to Department 16 pursuant to Code of Civil Procedure section 170.6 and reset for April 15, 2026.